



## Re: Request for Public Comment on 2/19

Draft

Tue, Feb 17, 2026 at 9:05 AM

From: Kate Strauch Sullivan <[REDACTED]>  
Date: Mon, Feb 16, 2026 at 11:35 PM  
Subject: Request for Public Comment on 2/19  
To: [REDACTED]

### Public Comment – Maryland State Board of Elections

Good afternoon.

As my email indicated last month, I'm asking the Maryland State Board of Elections to publicly clarify several facts regarding the voter registration of **Ian Roberts**. I have included my email below for your reference.

Kate Sullivan

As of the publicly available Maryland voter registration list dated **January 16, 2026**, Ian Roberts is still listed as an **active voter**, despite being widely acknowledged as a **non-citizen** who, according to information provided by the State Board, has **not voted in the last three election cycles**.

Director DeMarinis has stated that Mr. Roberts remains on the rolls because the State Board "follows NVRA guidelines" and cannot act without written notification that he has moved or is not a citizen. Even setting aside the question of citizenship—which itself raises a serious registration violation—the Board can readily confirm that Mr. Roberts is **not a Maryland resident**. He served as **Superintendent of Iowa Public Schools until five months ago**. That alone should render him ineligible to remain registered in Maryland.

Further, the Board has stated that Mr. Roberts has not voted in three election cycles. Assuming those statements are true, under both **NVRA and Maryland Election Law**, a registrant who fails to vote through two federal general elections must at minimum be expected to be moved to **inactive status**, and ultimately removed if the inactivity continues. Yet Mr. Roberts remains listed as **active**.

This case perfectly exposes the flaw in how NVRA is being applied in Maryland. The federal holding period exists to protect eligible voters from accidental removal—not to indefinitely shield clearly ineligible or inactive registrations from basic list maintenance. When an obviously ineligible registrant can remain active for years, and the State Election Director claims there is nothing he can do, that is not compliance—it is system failure.

This failure is reflected statewide. As of January 16, 2026, **approximately 904,000 voters—nearly 25% of Maryland's 4.3 million registered voters—are listed as active despite not voting in over two election cycles**. While some voters legitimately skip elections, it is entirely reasonable to ask why clearly

inactive voters continue to be labeled “active,” especially when voter status is central to the list-maintenance process.

I respectfully ask the Board to explain how its current list maintenance practices allow clearly inactive and ineligible registrations to remain active for years, and to outline what specific corrective actions will be implemented to ensure timely, lawful voter roll maintenance going forward.

Thank you.

“The truth is like a lion; you don’t have to defend it. Set it free; it will defend itself.”

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